

**SUPREME COURT OF THE STATE OF NEW YORK
QUEENS COUNTY**

_____X_____		
ANDREW ISAACS	:	CASE No.: 722548/2021
Plaintiff,	:	
against	:	
	:	AMENDED SUMMONS
CITY OF NEW YORK, QUEENS COUNTY		
DISTRICT ATTORNEY OFFICE, OFFICER DAVID		
FITCHIK #16757, OFFICER JOHN ROBERT;		
OFFICER PATRICK WRIGHT #961462; DOES 1-10		
Defendant(s)	:	

THE PLAINTIFF DESIGNATES QUEENS COUNTY AS THE PLACE OF TRIAL.

THE BASIS OF THE VENUE IS LOCATION OF INCIDENT

To the above named Defendants

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, on the Plaintiffs' attorney within twenty (20) days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: May 18, 2022

s/
Uwem Umoh, Esq.
Attorney for Plaintiff
25 Bond St, 2nd Floor
Brooklyn, NY 11201
718-360-0527

**SUPREME COURT OF THE STATE OF NEW YORK
QUEENS COUNTY**

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ANDREW ISAACS	:	CASE No.: 722548/2021
Plaintiff,	:	
against	:	
	:	AMENDED COMPLAINT
CITY OF NEW YORK, QUEENS COUNTY		
DISTRICT ATTORNEY OFFICE, OFFICER DAVID		
FITCHIK #16757, OFFICER JOHN ROBERT;		
OFFICER PATRICK WRIGHT #961462; DOES 1-10		
Defendant(s)	:	
-----X-----		

TAKE NOTICE, the Plaintiff, ANDREW ISAACS, hereby appears in this action by his attorneys, Umoh Law Firm, and demands that all papers be served upon him, at the address below, in this matter.

Plaintiff, ANDREW ISAACS, by his attorney, Uwem Umoh Esq., complaining of the defendants, The City of New York, Queens County District Attorney Office, Officer David Fitchik #16757, Officer Patrick Wright #961462, Officer John Robert and Does 1-10 collectively referred to as the Defendants, upon information and belief alleges as follows:

NATURE OF THE ACTION

1. This is an action at law to redress the deprivation of rights secured to the plaintiff under color of statute, ordinance, regulation, custom, and or to redress the deprivation of rights, privileges, and immunities secured to the plaintiff by the Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States, and by Title 42 U.S.C. § 1983 [and § 1985], [and arising under the common law and statutes of the State of New York].
2. This is an action to further seek compensation for the serious and permanent personal injuries sustained by the plaintiff, as a result of the negligence of the defendants, perpetrated while said defendants unlawfully arresting and maliciously prosecuted plaintiff. A timely notice of claim was filed.

PARTIES

3. Plaintiff Andrew Isaacs resides in Queens County, New York and is a resident of the State of New York.
4. Defendants Police Officers and John Does are, and at all times relevant to this action, were officers employed by the City of New York and acting under color of state law. Said officers are being sued in both their individual and official capacities.

5. The Defendants, City of New York and Queen County District Attorney Office, employ the Defendants Police Officers and Prosecutors.

FACTUAL ALLEGATIONS COMMON TO ALL CAUSES OF ACTION

6. This action is for personal injuries and economic loss due to the false arrest and malicious prosecution of claimant. On or about July 24, 2020, Officers employed by the NYPD arrested claimant and conspired with his ex-girlfriend to concoct evidence to support what they knew to be a false arrest. Police arrived at his premises at 119-25 Nashville Blvd, St. Albans, NY 11412 on or about 9pm and falsely claimed that he had a firearm. Despite claimants denial the officers engaged in an unlawful search and planted a firearm and bullets. Claimant was arrested as a result and charged with a number of felonies. .

7. The claim arose on or about July 24, 2020. Claimant was unlawfully arrested and prosecuted on at 119-25 Nashville Blvd, St. Albans, NY 11412. Plaintiff was then arrested and prosecuted. The defendants fabricated evidence, thus denying plaintiff and fair trial in violation of his Fifth amendment rights.

8. The defendants gave false testimony to the grand jury and hid exculpatory evidence. That even though the defendant police officers and District Attorney knew, or should have known, based on the facts that no crime had been committed, they still proceeded to arrest plaintiff, charge and then drop same charges, assault and incarcerate plaintiff just to intimidate plaintiff, further aggravating the plaintiff's injuries.

9. That at no time during the arrest was plaintiff read his Miranda rights.

10. At no time did plaintiff commit any offense against the laws of New York City and or State for which an arrest may be lawfully made. At no time did the plaintiff trespass at the alleged property or commit any illegal acts, or engage in any conduct which in any way justified the brutal and unlawful actions of the police.

11. As a direct and proximate result of defendants' actions, plaintiff suffered and continues to suffer injuries, including but not limited to emotional distress, nightmares, panic attacks, mental anguish and unwarranted severe anger bouts some or all of which may be permanent.

12. The unlawful arrest of plaintiff, plaintiff's wrongful imprisonment and malicious prosecution, because of defendants' knowledge of a lack of any legitimate cause or justification, were intentional, malicious, reckless and in bad faith.

13. As a direct and proximate result of defendants' actions, plaintiff suffered and continues to suffer, mental anguish, repetitive injury, psychological and emotional distress, and physical pain and suffering, some or all of which may be permanent.

14. As a direct and proximate result of his unlawful detention, assault, confinement, Plaintiff has lived in terror of their attack, and continues to suffer from nightmares, are fearful of going

outside and when he sees the police, and suffer various emotional attacks, in addition, and have been unable to function normally which has caused a severe strain and breakdown in his personal relationships, in and outside of his home.

15. As a direct and proximate result of defendant's actions, plaintiff was arrested, detained without just or probable cause.

16. As a direct and proximate result of defendants' actions, plaintiffs were deprived of rights, privileges and immunities under the Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution and the laws of the City of New York and the State of New York.

17. Defendant City of New York, as a matter of policy and practice, has with deliberate indifference failed to properly sanction or discipline police officers including the defendants in this case, for violations of the constitutional rights of citizens, thereby causing police officers including defendants in this case, to engage in unlawful conduct.

18. Defendant City of New York, as a matter of policy and practice, has with deliberate indifference failed to sanction or discipline police officers including the defendants in this case, who are aware of and subsequently conceal violations of the constitutional rights of citizens by other police officers thereby causing and encouraging police officers including defendants in this case, to engage in unlawful conduct.

19. The actions of defendants, acting under color of State law, deprived plaintiff of his rights, privileges and immunities under the laws and Constitution of the United States; in particular, the rights to be secure in his person and property, to be free from the excessive use of force and from malicious prosecution, abuse of process, and the right to due process.

20. By these actions, defendants have deprived plaintiff of rights secured by the Fourth, Eighth, and Fourteenth Amendments to the United States Constitution, in violation of 42 U.S.C. Section 1983.

21. A written claim was filed upon the City of New York, and at least thirty-days have elapsed since the service of the Notice of Claim and the adjustment or the payment of the claim has been neglected or refused.

22. This action has been commenced within one year and ninety days after the happening of the event upon which the claim is based.

AS A FIRST CAUSE OF ACTION:

42 U.S.C Section 1983-against Defendants Officers

23. Plaintiff hereby restates all paragraphs above of this complaint, as though fully set forth below

24. By detaining and imprisoning Andrew Isaac without justification, probable cause or

reasonable suspicion, the Officers, Defendants deprived Plaintiff of rights, remedies, privileges, and immunities guaranteed to every citizen of the United States, in violation of 42 U.S.C. Section 1983, including, but not limited to, rights guaranteed by the Fourth, Fifth, Eighth and Fourteenth Amendments of the United States Constitution.

25. In addition, the Defendant officers conspired among themselves to deprive plaintiff of his constitutional rights secured by 42 U.S.C. Section 1983, and by the Fourth, fifth, Eighth and Fourteenth Amendments to United States Constitution, and took numerous overt steps in furtherance of such conspiracy, as set forth above.
26. The Defendant Officers acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employment as NYPD Officers. Said acts by the Defendants Officers were beyond the scope of their jurisdiction, without authority of law, and in abuse of their powers, and said Defendants acted willfully, knowingly, and with the specific intent to deprive the Plaintiff of his constitutional rights secured by 42 U.S.C. Section 1983, and by the Fourth, Eighth and Fourteenth Amendments to the United States Constitution.
27. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages herein before stated.

AS A SECOND CAUSE OF ACTION:

42 U.S.C Section 1983-against Defendants Officers

28. Plaintiff hereby restates all paragraphs above of this complaint, as though fully set forth below
29. By maliciously prosecuting Andrew Isaacs without justification, probable cause, the Officers, Defendants deprived Plaintiff of rights, remedies, privileges, and immunities guaranteed to every citizen of the United States, in violation of 42 U.S.C. Section 1983, including, but not limited to, rights guaranteed by the Fourth, Eighth and Fourteenth Amendments of the United States Constitution.
30. In addition, the Defendant officers and district attorney conspired among themselves to deprive plaintiff of his constitutional rights secured by 42 U.S.C. Section 1983, and by the Fourth, fifth, Eighth and Fourteenth Amendments to United States Constitution, and took numerous overt steps in furtherance of such conspiracy, as set forth above.
31. The defendants acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employment as agents of the City of New York. Said acts by the defendants were beyond the scope of their jurisdiction, without authority of law, and in abuse of their powers, and said defendants acted willfully, knowingly, and with the specific intent to deprive the plaintiff of his constitutional rights secured by 42 U.S.C. Section 1983, and by the Fourth, Eighth and Fourteenth Amendments to the United States Constitution.

32. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages herein before stated.

AS A THIRD CAUSE OF ACTION:

New York State Constitution, Art. 1 Section 12

33. Plaintiff hereby restates all paragraphs of this complaint, as though fully set forth below
34. By detaining and imprisoning Dante Jones, without probable cause or reasonable suspicion, using excessive force, and assaulting them, the Defendant Officers deprived Plaintiff of rights, remedies, privileges, and immunities guaranteed to every New Yorker by Article 1, Section 12 of the New York Constitution.
35. In addition, the Defendant Officers conspired among themselves to deprive plaintiff of his constitutional rights secured by Article 1, Section 12 of the New York Constitution, and took numerous overt steps in furtherance of such conspiracy, as set forth above.
36. The Defendant Officers acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employment as NYPD Officers. Said acts by the Defendants Officers were beyond the scope of their jurisdiction, without authority of law, and in abuse of their powers, and said Defendants acted willfully, knowingly, and with the specific intent to deprive the Plaintiffs of his constitutional rights secured by Article 1, Section 12 of the New York Constitution.
37. Defendants, their officers, attorneys, agents, servants and employees were responsible for Plaintiff's deprivation of his state constitutional rights. Defendant City, as employer of each of the Officer Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
38. As a direct and proximate result of the misconduct and abuse of authority detailed above, plaintiffs sustained the damages herein-before alleged.

AS A FOURTH CAUSE OF ACTION:

New York State Constitution, Art. 1 Section 12

39. Plaintiff hereby restates all paragraphs of this complaint, as though fully set forth below
40. By maliciously prosecuting Dante Jones, without probable cause or reasonable suspicion, using excessive force, and assaulting them, the Defendant Officers deprived Plaintiff of rights, remedies, privileges, and immunities guaranteed to every New Yorker by Article 1, Section 12 of the New York Constitution.
41. In addition, the Defendant Officers conspired among themselves to deprive plaintiff of

his constitutional rights secured by Article 1, Section 12 of the New York Constitution, and took numerous overt steps in furtherance of such conspiracy, as set forth above.

42. The Defendant Officers acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employment as NYPD Officers. Said acts by the Defendants Officers were beyond the scope of their jurisdiction, without authority of law, and in abuse of their powers, and said Defendants acted willfully, knowingly, and with the specific intent to deprive the Plaintiffs of his constitutional rights secured by Article 1, Section 12 of the New York Constitution.
43. Defendants, their officers, attorneys, agents, servants and employees were responsible for Plaintiff's deprivation of his state constitutional rights. Defendant City, as employer of each of the Officer Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
44. As a direct and proximate result of the misconduct and abuse of authority detailed above, plaintiff sustained the damages herein-before alleged.

AS A FIFTH CAUSE OF ACTION:

Assault and Battery--all Defendants

45. Plaintiff hereby restate all paragraphs of this complaint, as though fully set forth below
46. In physically assaulting, handcuffing, threatening, intimidating plaintiff, the Defendants Officers, acting in their capacities as NYPD Officers, and within the scope of their employment, each committed a willful, unlawful, unwarranted, and intentional assault and battery upon plaintiff.
47. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiffs sustained the damages hereinbefore stated.

AS A SIXTH CAUSE OF ACTION:

False Arrest and False Imprisonment--all defendants

48. Plaintiffs hereby restates all paragraphs of this complaint, as though fully set forth below
49. The Defendants Officers wrongfully and illegally detained, and imprisoned the Plaintiffs.
50. The wrongful arrest and imprisonment of the Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.
51. At all relevant times, the Officers Defendants acted forcibly in apprehending, detaining, and imprisoning the Plaintiff.

52. During this period, the Plaintiff was unlawfully and wrongfully assaulted, harassed, detained, and threatened.
49. Throughout this period, the Plaintiff was unlawfully, wrongfully, and unjustifiably detained, deprived of their liberty, and imprisoned.
50. All of the foregoing occurred without any fault or provocation on the part of the Plaintiffs.
51. Defendants, their officers, agents, servants, and employees were responsible for plaintiff's detention and imprisonment during this period of time. Defendant City of New York, as employer of the Officers Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
52. The Defendants Officers acted with a knowing, willful, wanton, grossly reckless, unlawful, unreasonable, unconscionable, and flagrant disregard of the Plaintiffs' rights, privileges, welfare, and well-being and are guilty of egregious and gross misconduct toward Plaintiff.
53. As a direct and proximate result of the misconduct and abuse of authority detailed above, plaintiffs sustained the damages herein-before stated.

AS FOR A FIFTH CAUSE OF ACTION:

Intentional Infliction of Emotional Distress-all Defendants

54. The Plaintiffs hereby restates all paragraphs of this complaint, as though fully set forth below.
55. The Defendants Officers engaged in extreme and outrageous conduct, intentionally and recklessly causing severe emotional distress to plaintiffs.
56. Plaintiffs' emotional distress has damaged their personal and professional life because of the severe mental pain and anguish which were inflicted through deliberate and malicious detention and imprisonment by the Defendants Officers.
57. Defendants, their officers, agents servants, and employees were responsible for the intentional infliction of emotional distress suffered by the Plaintiffs at the hands of the Defendants Officers and security guards, defendant City of New York, as employer of the Officers, is responsible for their wrongdoing under the doctrine of respondeat superior.
58. As a direct and proximate result of the misconduct and abuse of authority detailed above, plaintiffs sustained the damages herein-before stated.

AS A SIXTH CAUSE OF ACTION:

Negligent and Retention of Employment Services-against defendant City of New York.

59. Plaintiffs hereby restates all paragraphs of this Complaint, as though fully set forth below.
60. Upon information and belief, defendant City of New York, through the NYPD, owed a duty of care to plaintiffs to prevent the physical and mental abuse sustained by plaintiffs.
61. Upon information and belief, defendant City of New York, through the NYPD owed a duty of care to plaintiffs because under the same or similar circumstances a reasonable, prudent and careful person should have anticipated that an injury to plaintiff or to those in a like situation would probably result from this conduct.
62. Upon information and belief, defendant City of New York, knew or should have known through the exercise of reasonable diligence that the Officers Defendants were not prudent and were potentially dangerous.
63. Upon information and belief, defendant City of New York, negligence in hiring and retaining the officers Defendants proximately caused Plaintiffs' injuries.
64. Upon information and belief, because of the defendant's City of New York, negligent hiring and retention of the aforementioned Officers Defendants, Plaintiffs incurred significant and lasting injuries.

AS A SEVENTH CAUSE OF ACTION:

Negligence against all defendants.

65. Plaintiff repeats and realleges all paragraphs as if each paragraph is repeated verbatim herein.
66. As a direct and proximate result of the negligent acts of all the defendants, City of New York as set forth herein, plaintiffs suffered physical injury, conscious pain and suffering, medical expenses, lost wages, and severe mental anguish.
67. That by reason of the said negligence, plaintiff suffered and still suffers bodily injuries, became sick, sore, lame and disabled and have remained sick, sore, lame and disabled since the aforesaid incident; have suffered great pain, agony and mental anguish and is informed and verily believes that they will continue to suffer for a long time to come and that said injuries are permanent; have suffered economic loss inasmuch as they was forced to, and are still forced to expend sums of money on medical treatment; that they were deprived of their pursuits and interests and verily believes that in the future he will continue to be deprived of such pursuits; and that said injuries are permanent.
68. This action falls within one or more of the exceptions of the New York State Civil Practice Law and Rules §1602.

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